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Act No. 132 (H.577). An act relating to establishing the Vermont Prescription Drug Discount Card Program

Subjects: Health; prescription drugs; State Treasurer; Vermont Prescription Drug Discount Card Program

This act establishes the Vermont Prescription Drug Discount Card Program, administered by the Office of the State Treasurer, to reduce prescription drug costs by pooling prescription drug purchasing power with other states. The Program will be available to all Vermont residents. The act requires the State Treasurer to report to the General Assembly by January 15, 2027, on implementation of the Program and to submit an annual report to the General Assembly and the Governor beginning in 2028 about the Program's activities during the previous calendar year. The act appropriates \$50,000.00 to the Office of the State Treasurer in fiscal year 2027 for the costs of developing and implementing the Program.

The act also requires health insurers and pharmacy benefit managers (PBMs) to count amounts paid by or on behalf of a covered individual for a prescription drug toward the covered individual's deductible and out-of-pocket maximums, even if the individual buys the drug without using insurance. It requires health insurers and PBMs to notify covered individuals at least annually that they are responsible for providing proof of payment when they do not use insurance in order to have their spending properly attributed to their deductible and out-of-pocket maximums, and it requires the insurers and PBMs to make downloadable proof-of-payment forms available on their websites.

Effective Date: July 1, 2026